MEMORY DARIKWA
versus
VIMBAI DARIKWA

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE, 27 February, 8 May 2026

Trial Divorce

A Chikoro, for the plaintiff
S R Pasvani, for the defendant

MAXWELL J:

The plaintiff and the defendant were married on the 30th of June 2007 in terms of the then Marriage Act [*Chapter 5:11*], now the Marriages Act [*Chapter 5:17*]. The marriage still subsists. The union was blessed with three minor children. On 6 September 2022, the plaintiff issued out summons for a decree of divorce and ancillary relief. She averred that the marriage has irretrievably broken down to an extent that there are no prospects of restoration of a normal marriage relationship. She stated that during the subsistence of the marriage, the parties acquired movable, immovable and incorporeal assets.

The plaintiff proposed that she be awarded custody of the minor children, with the defendant enjoying access rights every alternate weekend and the last two weeks of every school holiday. She further sought maintenance in the sum of US $ 100. 00 per minor child per month until each child attains the age of majority or becomes self-supporting. She also proposed that the defendant should cater for 50% of each minor child's school fees and all other related school expenses. Regarding property, she proposed an equitable distribution of movables and an 80% share of the immovable property, leaving 20% to the defendant.

The defendant entered an appearance to defend. He pleaded that he is not gainfully employed and is unable to meet the maintenance sum proposed by the plaintiff. He offered instead to pay US $40.00 per child per month at the prevailing RBZ foreign exchange auction rate. He further contended that Stand Number 6076, Bloomingdale, Harare, is jointly

registered in both parties' names and each party is entitled to a 50% undivided share therein, as both contributed to its acquisition

In replication, the plaintiff denied the defendant's averments and persisted with her claim.

A Joint Pre-Trial conference was held and the parties agreed on several issues. It was accepted by both parties that the marriage had irretrievably broken down with no prospects of restoration. Custody of the minor children was to be awarded to the plaintiff, with the defendant entitled to access every alternate weekend during the school term and the last two weeks of each school holiday. The defendant undertook to contribute maintenance in the sum of US $40.00 per child per month, inclusive of all educational expenses and clothing. The parties also agreed on the distribution of movable property, with the plaintiff receiving items including a black couch, beds, fridge, television set, baby tender, keyboard, solar set, library, and kitchenware. At the same time, the defendant was awarded, among other items, a black couch, a bunk bed, a double bed, a fridge, a television set, a baby cot, a Toyota Runx AEE 9448, a generator, and a library. The sole issue referred to trial was whether, given that the parties are registered joint owners of Stand Number 6076 Bloomingdale, Harare, in equal undivided shares, the plaintiff should be awarded 30% of the defendant's 50% share in the said property.

THE TRIAL

The plaintiff testified that all issues between the parties had been resolved, save for the sharing of the immovable property, Stand Number 6076, Bloomingdale, Harare. She stated that the property is jointly registered in both parties' names, but emphasised that she solely financed its acquisition. The purchase price was USD $25,000.00, which she met through loans obtained in her personal capacity. She took a loan of USD $20,000.00 from her former employer, the National Employment Council for the Motor Industry, and produced a letter on page 25 of the record in support of this assertion. The loan proceeds were applied directly to the purchase of the property, and she alone repaid the loan through deductions from her salary. She further obtained a loan of USD $5,000.00 from FBC Bank, which was wholly applied towards the purchase price, and she again repaid the loan without any contribution from the defendant. The plaintiff also testified that she effected improvements on the property, which were financed through a loan of USD $67,000.00 from POSB. Although the defendant was cited as a co-debtor, she maintained that she alone repaid the

debt. Under cross-examination, she remained firm in her position that she solely financed both the acquisition and the improvements of the property. She asserted that the defendant's name was added as co-purchaser and subsequently co-owner solely by virtue of the marital relationship, and not on account of any financial contribution made by him.

The defendant testified that he made direct and material contributions to the renovation works funded by the POSB loan. He stated that he supervised the construction, procured building materials, and made cash payments to builders and suppliers when loan disbursements were delayed, including purchasing cement from Mbare on credit. He further indicated that he personally undertook physical labour on the property and symbolically planted a bible on the foundation. He emphasised his sentimental connection to the property, noting that he also planted trees there. The defendant highlighted that he was a co-debtor with the plaintiff on the POSB loan. He testified that during the renovation works, he sustained a serious injury while erecting a water tank stand with builders, resulting in a permanent disability that causes him to walk with a limp.

He maintained that he suffered the injury in his capacity as a husband and co-owner of the family home. The defendant asserted that he built the property together with the plaintiff over the course of fifteen years of marriage. He stated that he made indirect contributions to the family and the matrimonial home. He testified that he fulfilled his role as a father by providing emotional support and actively participating in raising the children. He further stated that he maintained the property through repairs, gardening, painting, and general upkeep, and helped with household responsibilities such as transporting the children, shopping, and performing domestic tasks. He concluded that he provided moral and emotional support to the plaintiff throughout the marriage. He stated that while the National Employment Council loan was being deducted from the plaintiff's salary, he assumed responsibility for all household expenses, including groceries, utilities and school fees.

THE LAW AND ANALYSIS

The law relating to sharing of the assets of the spouses is set out in s 7 of the Matrimonial Causes Act [*Chapter 5:13*] (the Act). The assets subject to distribution are those that were acquired by the parties during the subsistence of the marriage. Section 7 of the Act guides the court in considering the distribution of the assets of the spouses during divorce proceedings. In *Gonye* v *Gonye* 2009 (1) ZLR 39 (S), "the assets of the spouses" were defined as those,

> "….. owned by the spouses individually (his/hers) or jointly (theirs) at the time of the dissolution of the marriage by the court"

and that these should be considered when an order is made concerning the division, apportionment or distribution of such asset.

In subsection 4 of section 7 of the Act, the Court is enjoined to have regard to all the circumstances of the case, including the following-

> "(a) the income-earning capacity, assets and other financial resources which each spouse and child has or is likely to have in the foreseeable future;
> (b) the financial needs, obligations and responsibilities which each spouse and child has or is likely to have in the foreseeable future;
> (c) the standard of living of the family, including the manner in which any child was being educated or trained or expected to be educated or trained;
> (d) the age and physical and mental condition of each spouse to the family and any other domestic duties;
> (e) the direct and indirect contribution made by each spouse to the family and any other domestic duties;
> (f) the value to either of the spouses or to any child of any benefit, including a pension or gratuity, which such spouse or child will lose as a result of the dissolution of the of the marriage;
> (g) the duration of the marriage; …"

The Act further directs that in distributing the assets, the court shall endeavour as far as is reasonable and practicable and, having regard to the conduct of the parties, where it is just to do so, place the spouses and child in the position they would have been in had a normal marriage relationship continued between the spouses.

In determining a just and equitable distribution of matrimonial assets, the court must exercise its discretion by considering all the relevant circumstances of the case. In *Shenje* v *Shenje* 2001 (2) ZLR 160 (H) at 163E-F Gillespie J stated that:

> "In deciding what is reasonable, practical and just in any division, the court is enjoined to have regard to all circumstances of the case. A number of the more important, more usual, circumstances are listed in the subsection. The list is not complete. It is not possible to give a complete list of all possible relevant factors. The decision as to a property division order is an exercise of judicial discretion, based on all relevant factors, aimed at achieving a reasonable, practical and just division which secures for each party the advantage they can fairly expect from having been married to one another, and avoids the disadvantages, to the extent they are not inevitable, of becoming divorced."

In *Mhangami* v *Mhangami* HH 523-21, the court reaffirmed that women's roles in family life may differ from those of men, but they are equally critical for the survival of society, and ordered an equal division of a jointly registered matrimonial home where the parties had raised their children.

It is common cause that Stand 6076 Bloomingdale, Harare, is registered in both parties' names as joint owners. Applying the principles in *Mhangami* v *Mhangami* supra, the joint registration of a property gives rise to a strong presumption of equal ownership. The plaintiff bears the onus of demonstrating compelling reasons for deviation from this presumption. She has not discharged that onus. Her claim for eighty percent is founded on assertions of greater financial contribution, a single factor at law that is insufficient to displace the presumption.

It was the defendant's evidence that he made direct contributions through payment of household expenses during the period when the plaintiff was repaying the National Employment Council loan. It was also the defendant's testimony that he made contributions to the renovations, made cash payments to builders, supervised construction work and performed physical labour. On the other hand, the plaintiff contended that the defendant's role in the POSB loan was that of a mere surety. I'm of the view that the fact that both parties signed the acknowledgment of debt together shows that they were core principal debtors.

It is important to note the indirect contributions the defendant made over 15 years of marriage. The plaintiff stated that the defendant's indirect contributions were not considerable. In the case of *Usayi* v *Usayi* 2003 (1) ZLR 684 (S), the Supreme Court upheld an award of a half share of the matrimonial home to a wife who had made no direct financial contribution whatsoever. ZIYAMBI JA, at pages 687 to 688, articulated the principle that one cannot quantify in monetary terms the contribution of a spouse who faithfully performs domestic duties, cares for children, and maintains the household. The court affirmed that such contributions are equally valuable to financial contributions and must be fully recognised.

In *Usayi* v *Usayi* SC22-24, the court held that,

> "There has to be an obvious and compelling reason for the court`s departure from the overarching principle of equality in the sharing of property."

In light of the Supreme Court's pronouncement, this court is guided by the overarching principle of equality in the distribution of matrimonial property. No compelling reason has been advanced by the plaintiff to justify a departure from that principle. It is just and equitable that the parties share the property equally, each being entitled to a 50% share.

DISPOSITION

BY CONSENT

1. A decree of divorce be and is hereby granted.
2. Custody of the minor children namely Matipa Nenyasha Darikwa born on 10 July 2008, Munana Wenyasha Darikwa born on 27 September 2011 and Washe Anenyasha Darikwa born on 29 April 2016, be and is hereby awarded to the plaintiff until the children turn 18 years of age.
3. The defendant is to exercise access rights over the children every alternate weekend during the school term and the last two weeks of every school holiday.
4. Defendant be and is hereby ordered to pay maintenance of US$ 40.00 per month per child, at the prevailing inter-bank rate, inclusive of all the educational expenses and clothing until each child attains the age of majority or becomes self -supporting.
5. Plaintiff be and is hereby awarded the following movable properties:
    a. 1 black couch
    b. 2 single beds
    c. 3 double beds
    d. Fridge upright double door
    e. 1 Television set
    f. 1 baby tender
    g. 1 keyboard
    h. Solar set
    i. Library
    j. kitchenware
6. Defendant be and is hereby awarded the following movable properties:
    a. 1 black couch
    b. 2 single beds (bunkbed)
    c. 1 double bed
    d. Fridge (upright double door)
    e. 1 Television set
    f. 1 baby cot
    g. Toyota Runx AEE 9448
    h. Generator
    i. Library

IT IS ORDERED THAT:

7. Each party be and is hereby awarded 50 % share of the property known as Stand Number 6076 Bloomingdale, Harare
8. The property will be valued by a valuer appointed by the parties within seven days of this judgment, and the parties shall bear the cost of the valuation equally.
9. If the parties fail to agree on a valuer, one will be appointed by the Registrar of the High Court upon request by either party.
10. The Plaintiff shall have the option to buy the Defendant's share within six months of receipt of the valuation report, or within such other period as agreed by the parties.
11. In the event that the Plaintiff fails to buy the Defendant's share in terms of paragraph 7 above, the property shall be sold to the best advantage by an estate agent agreed to by the parties or appointed by the Registrar where the parties fail to agree.
12. The net proceeds of the sale of the house shall be shared equally between the parties.
13. Each party shall bear its own costs.

Maxwell

Macheyo Law Chambers, plaintiff's legal practitioners.
Dzoro &Partners, defendant's legal practitioners